

Defendant Wells Fargo, N.A. moves for judgment on the pleadings. Plaintiffs oppose the motion and request to file an amended complaint.

“A motion for judgment on the pleadings is the functional equivalent of a general demurrer.” (*Spencer v. City of Palos Verdes Estates* (2023) 88 Cal.App.5th 849, 861.) As such, the grounds for the motion for judgment on the pleadings must appear on the face of the complaint and any judicially noticeable documents. (*Ibid.*) Further, the court must accept as true all material factual allegations in the complaint. (*Ibid.*) The court may take judicial notice of a defendant’s uncontroverted admissions in responses to request for admissions or interrogatories. (*Arce v. Kaiser Foundation Health Plan, Inc.* (2010) 181 Cal.App.4th 471, 485; *see also Evans v. California Trailer Court, Inc.* (1994) 28 Cal.App.4th 540, 549, disapproved on other grounds in *Black Sky Capital LLC v. Cobb* (2019) 7 Cal.5th 156.) The court, however, does not accept the truth of contentions, deductions, or conclusions of law. (*Spencer*, 88 Cal.App.5th at 861.)

Defendant Wells Fargo, N.A. brings the motion on the basis the complaint fails to state facts sufficient to constitute a cause of action. (Code Civ. Proc. § 438(c)(1)(B)(ii).) (Mot. J. Pleadings at 2.) Plaintiffs agree their second cause of action under the HBOR is defective, and indicate they will not proceed on that claim. Plaintiffs request leave to amend to allege a variety of additional claims, including wrongful foreclosure, negligent loan servicing, negligent misrepresentation, promissory estoppel, and unfair business practices.

Defendant’s motion is granted. (Code Civ. Proc., §§ 473, (a)(1), 576.) The motion is granted without leave to amend as to the second cause of action under the HBOR. The motion is granted with leave to amend as to the first and third causes of action. Plaintiffs’ implied request to amend to add additional causes of action beyond the scope of defendant’s motion is denied without prejudice to plaintiffs bringing a noticed motion for leave to file an amended complaint.

Plaintiffs shall file and serve the amended complaint **on or before July 6, 2026**.

19. S-CV-0055661 Ronketty, David v. Mitchell, Dia

The moving party is advised the notice of a motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Plaintiff’s motion to strike portions of defendant’s answer

Plaintiff moves to strike portions of defendant’s answer. Defendant did not file a response.

Meet and Confer

Code of Civil Procedure section 435.5 requires that “[Before filing a motion to strike pursuant to this chapter, the moving party shall meet and confer in person, by telephone,

or by video conference with the party who filed the pleading that is subject to the motion to strike for the purpose of determining if an agreement can be reached that resolves the objections to be raised in the motion to strike.” (Code Civ. Proc., § 435.5 (a).) There is no evidence in the record that this requirement has been satisfied. The court admonishes the moving party to comply with meet and confer requirements. (Placer County Local Rules, Rule 20.2.1; Code Civ. Proc., § 435.5.) Nevertheless, as the motion is unopposed, the court will proceed with the merits.

Background

On July 17, 2025, plaintiff filed a complaint, alleging breach of contract, common counts (alleging owing \$29,400), fraud, embezzlement, breach of fiduciary duty, negligence, conversion, and intentional infliction of emotional distress. (Pl. Compl. at 1, 3-7.)

Legal Standard

The court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: Strike out any irrelevant, false, or improper matter inserted in any pleading. (Code Civ. Proc., § 436 (a).)

The statement of any new matter in the answer, in avoidance or constituting a defense, shall, on the trial, be deemed controverted by the opposite party. Code Civ. Proc., § 431.20 (b).

“It is the duty of a defendant to plead matters which are not provable under a general or specific denial but which avoid the action or at least the theory outlined in the complaint. If the burden of proof is thrown upon the defendant, [Code Civ. Proc. § 431.30], the matter pleaded comes under the general heading of new matter, which must be proved with the purpose of defeating plaintiff's case. *Dieterle v. Bekin* (1904) 143 Cal. 683, 688-89. Whether defendants failed to prove the new matter is a question to be determined by the trial court.” *Gularte v. Martins* (1944) 65 Cal.App.2d 817, 820-21.

Analysis

Answer

As the defendant may plead matters which are not provable under a general or specific denial, but which avoid the action or at least the theory outlined in the complaint, the court will only strike the references that would not fall under any theory of defense. Thus, the court does not see the relevance to a defense or theory of the defendant's case for the following statements in the answer:

“nor should he have been using drugs while under home arrest.” (Def. Answer, pg. 1, ¶ 3b.)

“Additionally, Mr. Ronketty submitted a false renters claim and received \$5000.00. He

did not possess any of the items he listed on the loss form he submitted to the adjuster. Furthermore, Mr. Ronketty is involved in another fraudulent insurance claim, alleging that he was abused by a priest and has joined a class action lawsuit that is expected to pay him over \$200,000. Mr. Ronketty is a thief who profits from making false insurance claims and selling illegal drugs.” (Def. Answer, pg. 2, ¶ 4.)

Declaration

Plaintiff alleges the Marcus Malloy declaration contains hearsay, character attacks, and statements addressing matters unrelated to the causes of action pled in the complaint. As the defendant may plead matters which are not provable under a general or specific denial, but which avoid the action or at least the theory outlined in the complaint, the court will only strike the references that would not fall under any theory of defense. Marcus Malloy alleges to have personal knowledge of facts relevant to this case. Therefore, plaintiff’s motion to strike the Marcus Malloy declaration is denied.

Conclusion

In summary, plaintiff’s motion to strike portions of defendant’s answer is granted, in part. The court orders the lines of defendant’s answer, quoted above, stricken from the record.

20. S-CV-0056317 Nonhprasith, Phonesavanh Lee v. US Bank

Defendants are advised the notice of motion must include notice of the court’s tentative ruling procedures. (Local Rule 20.2.3(C).)

Special Motion to Strike

Defendant John P. Ward moves to strike the first amended complaint, arguing the quiet title claim against him arises from protected activity within the meaning of Code of Civil Procedure section 425.16.

Preliminarily, this motion is effectively unopposed. While plaintiff filed an opposition on April 8, 2026 arguing that this action is subject to an automatic bankruptcy stay, the court issued a ruling on April 21, 2026 noting that an automatic bankruptcy stay applies to actions “against the debtor,” which would not apply to a plaintiff in an action. The court set aside the notice of bankruptcy stay and continued the hearing to permit plaintiff the opportunity to file an opposition. On June 8, 2026, plaintiff filed substantively the same opposition as it had on April 8, 2026, not acknowledging the court’s April 21, 2026 order. As no bankruptcy stay is in place and as plaintiff has had ample opportunity to oppose on the merits and has elected not to, this court will reach the merits of this motion and treat it as effectively unopposed.

Defendant’s request for judicial notice is granted.